

Amendment No. 1 to HB1708

Howell
Signature of Sponsor

AMEND Senate Bill No. 1889

House Bill No. 1708*

by deleting all language after the enacting clause and substituting instead:

SECTION 1. Tennessee Code Annotated, Section 55-50-322, is amended by adding the following as a new subsection (k) and redesignating the existing subsection (k) as subsection (l):

(k)

(1)

(A) If an applicant for a driver license or intermediate driver license is unable to speak and read the English language, then the applicant may be administered the written examination in a language other than English that is offered by the department.

(B) If the department issues a driver license or intermediate driver license pursuant to subdivision (k)(1)(A), the license must be a restricted license that is non-renewable and valid for only eighteen (18) months. An applicant who is issued a restricted license pursuant to this subsection (k) is authorized to operate a motor vehicle from six o'clock a.m. (6:00 a.m.) to eleven o'clock p.m. (11:00 p.m.) and is prohibited from operating a motor vehicle outside of those times unless travelling to and from:

(i) An educational institution, if the driver or the driver's child is enrolled at an educational institution and the driver has in their possession documentation of the driver or driver's child enrollment in the institution on institutional letterhead;

(ii) The driver's regular place of employment, including working at the applicant's regular place of employment, if the driver has in their possession documentation of employment and the hours of employment on the employer's letterhead;

(iii) A place for religious worship;

(iv) A child care provider or child care agency, as those terms are defined in § 71-3-501, if the driver has in their possession documentation on the provider's or agency's letterhead that the driver's child is enrolled; and

(v) Medical treatment of the applicant or an immediate family member.

(C) Upon expiration of the restricted license issued pursuant to this subdivision (k)(1), to obtain a driver license or intermediate driver license, the applicant shall retake only the written examination and it must be administered to the applicant in English only. The applicant shall not use a translation dictionary, an electronic device, or an interpreter to assist with the administration of the re-examination.

(2) Subdivision (k)(1) does not apply to an applicant:

(A) For a commercial driver license under part 4 of this chapter;

or

(B) Who is unable to speak the English language sufficiently, is capable of reading and writing in the English language, and presents a written statement from a physician that the applicant has a hearing impairment that impacts the applicant's ability to speak the English language sufficiently.

(3) A person under eighteen (18) years of age who is issued an intermediate license under this subsection (k) is also subject to the requirements

and restrictions in § 55-50-311, except for those under § 55-50-311(c)(2). A duplicate license issued under § 55-50-311(c)(3) remains subject to the requirements of this subsection (k) with regard to the expiration date and the requirements in subdivision (k)(1)(C) for the issuance of an unrestricted license.

(4) This subsection (k) does not require the department to administer a driver license written examination in a language other than a language that was offered by the department on January 1, 2026.

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 4, Part 1, is amended by adding the following as a new section:

55-4-144.

(a) The commissioner of revenue or a county clerk shall not process an application for initial issuance of registration of a motor vehicle in which a license plate is issued until the applicant provides documentation, whether in paper or electronic format, that the applicant is:

- (1) A citizen of the United States;
- (2) A lawful permanent resident of the United States; or
- (3) A person whose presence in the United States has been authorized by the federal government for a specific purpose and for a specified period of authorized stay.

(b)

(1) A REAL ID-compliant license, Tennessee driver license, Tennessee photo identification license, Tennessee temporary driver license, or Tennessee temporary photo identification license is deemed satisfactory proof under subsection (a).

(2) The department shall publish on its website a list of acceptable forms of documentation and identification that may be provided or submitted with a registration application in accordance with this section.

(c) For purposes of this section, acceptable electronic formats include display of electronic images on a cell phone or any other type of portable electronic device.

(d) An applicant applying for initial issuance of registration of a motor vehicle in which a license plate is issued and for whom the department or county clerk has recorded the required documentation pursuant to this section is deemed in compliance with this section unless otherwise required by law.

(e) Every registration and renewal of registration must be accompanied by the following notice:

THE OWNER AND/OR OPERATOR OF THIS VEHICLE IS REQUIRED
TO BE A UNITED STATES CITIZEN, LAWFUL PERMANENT RESIDENT, OR
TEMPORARY LAWFUL RESIDENT PURSUANT TO TENNESSEE CODE
ANNOTATED, § 55-4-144.

(f) If a dealer is appointed by a person to manage a registration transaction on the person's behalf pursuant to § 55-3-103 or another law, then the dealer must submit a copy of the person's documentation required pursuant to subsection (a) as part of the application in order for the application to be processed.

SECTION 3. Tennessee Code Annotated, Section 55-50-321(c)(1), is amended by deleting subdivisions (C)-(E) and substituting instead:

(C) Any applicant applying for an initial issuance, renewal, duplicate, or reinstatement of a driver license, instruction permit, intermediate driver license, or photo identification license shall provide either an original or certified copy of documentation that the applicant is a citizen of the United States.

(D) Any applicant applying for a renewal, duplicate, or reinstatement of a license for which the department has the documents required in subdivision (c)(1)(C) on file, shall be deemed in compliance with subdivision (c)(1)(C) unless otherwise required by law.

SECTION 4. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 5. For purposes of establishing or coordinating data sharing between a department and county clerks and promulgating forms and rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.